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March 21, 2025

Layton City Mayor Joy Petro
Layton City Hall
437 N Wasatch Dr
Layton, UT 84041

Subject: NOTICE OF INTENT TO SUE – Failure to Comply with GRAMA & Constitutional Violations

Dear Mayor Petro, Layton City Officials, and Legal Counsel,

Please take notice that pursuant to applicable laws, including Utah Code § 63G-7-401 and 42 U.S.C. § 1983, I, Matthew O. Reardon, intend to file a lawsuit against the City of Layton, Utah and City Prosecutor Mark Arrington for violations of my constitutional rights under the First, Fourth, and Fourteenth Amendments to the U.S. Constitution and for violations of the Utah Government Records Access and Management Act (GRAMA), Utah Code § 63G-2-101 et seq.

Violations & Basis for Legal Action:

1. Failure to Comply with GRAMA Requests

- I submitted a public records request on March 13, 2025, requesting communications and phone logs relevant to my case. It was requested as an urgent request due to its nature, marked by Mayor

Petro as an urgent request, and at the discretion of the City Legal Division this was intentionally ignored and refused.

- Layton City has failed to provide the requested records within the legally mandated timeframe, violating Utah Code § 63G-2-204.
- The City has ignored multiple follow-ups and failed to provide a legal basis for withholding the information.

2. Constitutional Violations – 1st, 4th, and 14th Amendments

- City Prosecutor Mark Arrington unlawfully obtained and used my personal information under suspicious circumstances.
- His claim that he identified me through an online search is demonstrably false, raising concerns about potential illegal surveillance, misuse of government databases, or outside collusion.
- Upon Arrington calling me at 8:54AM on February 14, 2025 in what felt like pure intimidation and scare tactics, he first states how he knew my real name, not my alias name I had requested the records under, and proceeds to list one thing after the other.
- Arrington states that I will have to come up to the police department in person and show my ID to get public records I had lawfully requested through GRAMA. He did this knowing I would not go and pick up those records due to the indirect intimidation and abuse of power/authority he had just demonstrated.

- Not only does this violate my First Amendment Right (Freedom of Speech, Freedom of the Press, and Right to Petition for Redress) it Chills my First Amendment Right in regards to the City of Layton, UT
- It also violates my Fourth Amendment right (unlawful searches) as well as violating my Fourteenth Amendment rights (due process and equal protection).

Legal Demands & Corrective Action Required:

To avoid immediate litigation, I demand the following actions be taken within five (5) business days by Friday, March 28, 2025 at 3:00 PM MST:

1. Immediate compliance with my GRAMA request and full disclosure of the requested records.
2. A formal **WRITTEN** explanation from Layton City regarding how Mark Arrington obtained my personal information.
3. A commitment to an independent review of potential misconduct by Mr. Arrington and the City's Legal Department.
4. Cease and desist all forms of retaliation, intimidation, and surveillance against me;
5. Implement corrective measures to ensure future compliance with GRAMA;
6. Implement corrective measures to ensure future compliance with constitutional protections;
7. The City's requirement for an individual to show Identification to receive non-privileged public records under GRAMA be immediately rescinded. (not required under GRAMA)

8. Compensation for damages, including emotional distress, reputational harm, and costs incurred due to the city's unlawful actions.

Failure to Comply & Legal Consequences:

If Layton City fails to respond by the stated deadline, I will immediately file a lawsuit seeking:

- A court order compelling the release of the requested records under GRAMA.
- Damages for constitutional violations related to unlawful searches, due process violations, and potential government misconduct.
- Legal fees and any additional relief the court deems appropriate.

This Notice serves as a final opportunity to resolve this matter without litigation. Please confirm receipt and provide a response addressing the requested actions. Additionally, please take any and all measures to preserve all records and anything that could be considered of evidentiary value regarding the matter herein.

Sincerely,

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